

Operation SUMMER

Tactic

Operation Type

Pro-active operation to safeguard high risk CSE victims.

There are various tactics deployed to safeguard CSE victims. Operation SUMMER is the seizure of undergarments from victims involved in CSE which provides the platform to produce credible indisputable evidence. It presents the opportunity to;

- Map offenders across areas
- Link to other criminality and opportunities that present themselves for alternative enforcement
- Tiered intervention plans to mitigate or manage the threat posed including the application for civil interventions such as SRO's

It is a statutory responsibility for the sharing of information with partner agencies. Internally, good communication channels have been built with the police and allocated social workers to assist with the holistic approach to the victims under the operation SUMMER tactic supporting both the victims and their families providing support and signposting.

The tactic is necessary for the protection of the victims and future victims involved in CSE, proportionate in what we seek to achieve and legitimate in the lawful process having due regard to PACE and RIPA legislation.

Remit

In the commissioning of this tactic within West Midlands Police, it was agreed that only individuals **aged 14 or under** who have been recorded on COMPACT as a MISPER on at least one occasion between a 3 month period would be considered. (Alternative parameters could be set according to necessity and proportionality).

- Combined number of absences and MISPER episodes
- Whether they have been in/found in "risky" situations whilst absent/missing
- Whether they are linked to other known CSE victims
- Whether there is any current (within 3 months) intelligence detailing CSE type behaviour/concerns

After the WMP trialled the above two months, it then morphed into parameters to include:

- Any young individuals who are flagging as being of serious concern of being at risk of CSE but who haven't as of yet been recorded as MISPERs. This therefore allows plans to be ready in place for if that individual goes missing allowing early intervention and prevention.

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- Any individuals who don't fit within the current age criteria but are considered vulnerable, due to learning difficulties for example, and for whom there are increasing concerns CSE for and realistic opportunities to collect forensic evidence.
- In partnership with CSE co-ordinators work closely with the children and their parents or guardians to educate and reduce the risks around CSE.
- Whenever possible seek support of parents and guardians to covertly seize their children's underwear.

Rationale and Parameters

As it is impractical to seize the underwear of every child at risk of CSE certain criteria had to be put into place.

Age: the team focused on individuals aged 14 and below.

- The younger the child, the more likely we are to be able to prove in court that the perpetrator believed that they were under the age of consent, despite any assertions to the contrary.
- It was also considered that targeting the "younger" children would provide greater opportunity to prevent further CSE by way of educating parent/guardians in addition to assisting with the necessary agencies providing support to the child before becoming deeply entrenched in CSE.
- It was also perceived that the older the child became, the more aware of forensic tactics they become.

Missing Episodes:

- The number of missing episodes a child has been subject of should be considered, as sexual exploitation is inextricably linked to going missing, and so the "Golden Hour" for obtaining this evidence is upon the victim's return. The more often the child goes missing the more opportunities there are to gather this proof, which said, the most recent missing episodes need to be relatively current so that the technique is effective.

Risk Assessment

The risk assessment of the child will be borne in mind, however not necessarily in the conventional sense.

Those at Serious Risk (i.e. High Risk) of CSE are often subject of enhanced safeguarding procedures by the police, social services and third sector agencies, therefore once graded as such the risk to them should, in theory at least, be reduced.

It may therefore be advantageous to consider those at medium/low Risk for preventative purposes.

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Regard should also be taken as to links to known perpetrators of CSE, if intelligence suggests that a child has links to more than one man, especially where the age gap is significant, the more likely it is that the child is being exploited by numerous men.

Consideration has been given around the interfamilial effect whereby the child is made aware that Police have taken away their undergarments covertly. Family/guardians are briefed on Police powers and where necessary should lay any “blame” on the Police taking away underwear as part of our police powers under S 19 PACE- search and seize. Section 3(1) Children Act 1989 defines Parental Rights as all rights, duties, powers, responsibilities and authority which by law a parent of a child has in relation to that child and their property.

Whilst it would be preferable for officers to recover under s.19 PACE (for the reasons set out in the document), a local authority can recover underwear belonging to a child in its care or foster care. Any individual with Parental Responsibility could also do the same (when child not under care of LA). Provided the recovery is done safely/sensibly, it should be possible that physical evidence contained in the underwear could still be used to full effect in related legal proceedings.

Contingency/Finance

Operation SUMMER has been allocated a cost code whereby all submissions are subject to monetary scrutiny. This has also been subject to management approval at forensic submissions providing the buy in and understanding from all stakeholders.

Covert Tactics

Following on from the focused identification of Op SUMMER victims, a considered approach has been made based on intelligence for the deployment of directed surveillance. Such an approach will be weighted on risk and supportive intelligence and at all times will have a senior investigation officer assigned.

Overarching Outcomes

- Reduced risk and positive engagement shared with CSE co-ordinators and allocated Social Workers
- Significantly increased risk identified and shared with CSE co-ordinators and Allocated Social Workers
- Directed surveillance deployed direct on victims to deal with at risk intelligence
- Development of covert operations to tackle high risk locations

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Legal Powers

- Increased intelligence collected surrounding high risk locations
- Increased civil intervention- SRO's
- Positive CJ outcomes

With regard to the practicality of seizing a child's underwear we need to consider what powers we have to facilitate this.

If officers are lawfully on premises then they can rely on **Sec 19 of PACE**, however we must have regard for the sensitivity in which this power is exercised, although reasonable force can be used, clearly this would not be an appropriate use of power. Seizure can be done either overtly or covertly, however to protect the tactic, and prevent any need to exercise force, a covert seizure would be preferable although it's acknowledged that this may not always be practical. This will generally be dependent on how supportive family members are, however it would be rather concerning if they were against the opportunity to identify perpetrators of sexual abuse, indeed it could form part of a working agreement within any Child Protection Plan. Co-operation with the tactic has not been an issue for SUMMER where the child resides in a care home or with foster carers.

As an alternative to the power under sec 19 there should be a consideration to the use of a Sec 8 PACE warrant, so as to prevent any issues of unlawfully being on premises. It may be advantageous to obtain the warrant when the identified victim goes missing so it is available upon their return; missing episodes tend to be for a relatively short amount of time and so the warrant is likely to still be in date. There is also the possibility of obtaining a multiple entry warrant for those victims that go missing on such a regular basis that the obtaining of such would be beneficial, and therefore negate the need to obtain numerous warrants. Section 3(1) Children Act 1989 defines Parental Rights as all rights, duties, powers, responsibilities and authority which by law a parent of a child has in relation to that child and their property.

Human Rights

The Police, like other Public Authorities and bodies performing public functions, are bound by the Human Rights Act 1998 and in particular section 6 of the Act, which states that it is unlawful to act incompatibly with a European Convention on Human Rights (ECHR) right incorporated by the Act. We recognise that the most relevant right for these purposes, the right to privacy under Article 8 ECHR, may be engaged in relation to the seizure of undergarments.

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However, Article 8 is a qualified right, and it may be restricted where the restriction is lawful for a legitimate aim, necessary and proportionate.